

IN THE MUNICIPAL COURT OF THE CITY OF [CITY OF THE UNDERLYING ORDINANCE
VIOLATION — CONFIRM WITH THE COURT], KANSAS

[CITY AS NAMED IN THE UNDERLYING MUNICIPAL CASE],
Plaintiff,

v.

RILEY SAMPLE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR EXPUNGEMENT OF A CITY ORDINANCE ARREST RECORD PURSUANT TO
K.S.A. 12-4516a

STATUTORY AUTHORITY

K.S.A. 12-4516a(a) — Any person who has been arrested on a violation of a city ordinance may petition the court to expunge the arrest record. The petition is directed to the municipal court of the city whose ordinance was charged.

K.S.A. 12-4516a(b) — When the petition is filed the court sets a hearing date and causes notice to be given to the prosecuting attorney and the arresting law enforcement agency.

K.S.A. 12-4516a(c) — At the hearing the court shall order the arrest record and subsequent court proceedings expunged on finding any of the following: mistaken identity; that a court found no probable cause for the arrest; that the petitioner was found not guilty; that the arrest was for a violation of an ordinance prohibited by K.S.A. 12-16,134(a) or (b) adopted before July 1, 2014; or that expungement would be in the best interests of justice and charges have been dismissed or no charges have been or are likely to be filed.

K.S.A. 12-4516a(d) — The official court file is separated from other court records and disclosed only to a judge, designated court staff, the prosecuting attorney, the arresting agency, or others by court order.

K.S.A. 12-4516a(f) — A municipal court may prescribe a fee as costs, except that no fee may be charged to a person arrested as a result of being a victim of identity theft.

K.S.A. 21-6107 — Carried in the pinned registry authority list for this track.

K.S.A. 12-16,134 — Identifies the ordinance categories referenced by the K.S.A. 12-4516a(c) ground for a pre-July-1-2014 ordinance violation.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Municipal Court of the City of [CITY OF THE UNDERLYING ORDINANCE VIOLATION — CONFIRM WITH THE COURT], Kansas, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in the city whose ordinance is the subject of this Petition.

II. PARTIES

3. Petitioner is Riley Sample, whose address is 1234 Example Avenue, Topeka, KS 66601.
4. Plaintiff is the city whose ordinance is the subject of this Petition.

III. FACTS AND CASE HISTORY

5. On or about 02/03/2024, Petitioner was charged with Arrest on a city ordinance charge of disorderly conduct by City of Example Police Department.
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. On 06/20/2024, the matter was resolved with the following disposition: Charges dismissed.

IV. ELIGIBILITY ALLEGATIONS

8. Petitioner may be eligible for expungement on the following basis: Expungement of a city ordinance arrest record under K.S.A. 12-4516a(c) on the ground that expungement would be in the best interests of justice and the charges have been dismissed.
9. Petitioner asks the Court to set a hearing date and to give notice to the prosecuting attorney and the arresting law enforcement agency, as the statute directs.
10. Petitioner asks the Court to find that expungement would be in the best interests of justice and that the charges arising from the arrest identified above have been dismissed.
11. Petitioner states the circumstances relied on in the accompanying statement; that statement is completed by Petitioner and is not supplied by any other person.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Petition and enter an Order directing the expungement of the arrest record identified in this Petition and the subsequent court proceedings relating to it in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to expunge all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, Riley Sample, declare that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

Riley Sample
1234 Example Avenue, Topeka, KS 66601

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

PROPOSED ORDER

IN THE MUNICIPAL COURT OF THE CITY OF [CITY OF THE UNDERLYING ORDINANCE VIOLATION — CONFIRM WITH THE COURT], KANSAS

[CITY AS NAMED IN THE UNDERLYING MUNICIPAL CASE] v. RILEY SAMPLE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The municipal court, the prosecuting attorney, and the arresting law enforcement agency, City of Example Police Department, and all other criminal justice agencies with records pertaining to this matter are hereby directed to expunge all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Proposed order of expungement
- Certified municipal court record showing dismissal

Prepared by petitioner using LegalEase RCAP. This is not an official court form.